



## DEPARTMENT OF PUBLIC SAFETY

### Colorado Bureau of Investigation

#### ALERT PROGRAM

##### 8 CCR 1507-23

*[Editor's Notes follow the text of the rules at the end of this CCR Document.]*

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## AUTHORITY TO ADOPT RULES AND REGULATIONS

The Colorado Department of Public Safety Executive Director is mandated to promulgate rules and regulations regarding the Amber Alert Program pursuant to 24-33.5-415.7.

## DEFINITIONS

The definitions provided in section 24-33.5-415.7 (2) shall apply to these rules and regulations.

**“Abducted Child”** - means a child whose whereabouts are unknown, whose domicile at the time he or she was reported missing was Colorado, whose age at the time he or she was first reported missing was seventeen years of age or younger, and whose disappearance poses a credible threat as determined by local law enforcement to the safety and health of the child.

**“Emergency Alert System - EAS”** - means a system comprised of radio and television broadcasts activated by the state emergency alert station. The EAS system, established by the Federal Communications Commission (FCC), is a tool the President and others may use to warn the public about emergency situations. For the purposes of this rulemaking, the EAS system will be utilized for the broadcasting of information regarding abducted children.

**“Amber Alert Broadcast”** - means an EAS notification containing information regarding an abducted child, the suspected abductor, circumstances surrounding the abduction, suspect(s) mode of transportation and/or direction of travel, and any additional information pertaining to the investigation.

## RULES/REGULATIONS/PROCEDURES

### CBI-AAP1

- A local law enforcement agency, operating under their individual policies and procedures, involving an investigation and upon confirmation of a report of an abducted child, may notify the Colorado Bureau of Investigation and request that the information be conveyed to the bureau for an Amber Alert Broadcast. The Colorado Bureau of Investigation will provide a designated number to be utilized for contacting Colorado Bureau of Investigation Personnel assigned to assist local law enforcement agencies with the Amber Alert Broadcast. The number will be operational 24 hours a day, 7 days a week. Voicemail messages shall not be left concerning an Amber Alert Broadcast.

### CBI-AAP2

- The Colorado Bureau of Investigation will verify the accuracy of the information based on personal contact with a representative from the law enforcement agency. The verification of information provided by the law enforcement agency, will include but is not limited to:

- 1) Confirming the identity of the Law Enforcement Agency and the reporting law enforcement official.
- 2) Verify that the information being reported meets the definition of "Abducted Child".

The Colorado Bureau of Investigation will then forward the information on to the State Emergency Alert System (EAS) Broadcaster in Colorado. The State EAS Broadcaster as of June 5, 2002 is CLEAR CHANNEL COLORADO located at 4695 S. Monaco Street, Denver Colorado 80237.

### **CBI-AAP3**

- The state EAS broadcaster shall broadcast all appropriate information that may assist in the safe recovery of the abducted child, and a statement instructing anyone with information regarding the abducted child to contact his or her local law enforcement agency. The alert information may contain but is not limited to:

- 1) Victims name and identification information to include last known location.
- 2) Suspect(s) name and identification information.
- 3) Information involving the suspect(s) mode of transportation to include last known location.
- 4) Brief description of events leading to the abduction of the child or children.
- 5) Information directly related to the safety and health of the child.
- 6) Information relating to the safety and welfare of the public.

### **CBI-AAP4**

- The Alert may be rebroadcast. The frequency of the rebroadcast information may be at the direction of state or local law enforcement and as additional information becomes available or as investigation circumstances change.

The cancellation of the broadcast shall be the responsibility of the Colorado Bureau of Investigation. The bureau will notify the State EAS Broadcaster if the child has been found. Any law enforcement agency that locates a child who was the subject of an Amber Alert Broadcast **shall** notify the Colorado Bureau of Investigation as soon as possible by contacting the Colorado Bureau of Investigation Personnel assigned to assist local law enforcement agencies with the Amber Alert Broadcast.

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### **Editor's Notes**

### **History**